

		Counsel is ordered to give notice of the ruling.
104	Alvarez vs. Complete Automotive Reconditioning Specialists, LLC 2024-01432439	Motion to Compel Arbitration Defendant Complete Automotive Reconditioning Specialists LLC’s Motion to Compel Arbitration and Stay Proceedings is DENIED. Defendant’s Request for Judicial Notice is denied in its entirety on the ground of relevance. Plaintiff Andres Alvarez’s Request for Judicial Notice is denied in its entirety on the ground of relevance. The Court rules as follows on Plaintiff’s evidentiary objections to the Declarations of Christina Reynoso and Carmine Pearl: 1. Sustain – lacks foundation, calls for legal conclusion 2. Overrule 3. Overrule 4. Overrule 5. Overrule On January 22, 2025, Defendant filed the current Motion to Compel Arbitration and Stay of Proceedings. <u>Existence of Agreement to Arbitrate</u> Defendant contends that Plaintiff’s individual wage-and-hour and PAGA claims must be compelled to binding arbitration pursuant to an arbitration agreement Plaintiff purportedly electronically signed on or about June 20, 2023, as part of his employment onboarding process. Plaintiff opposes the Motion primarily on the ground that Defendant has failed to establish the existence of a valid agreement to arbitrate. For the reasons explained below, the Court agrees. In resolving petitions to compel arbitration, courts must first determine whether the agreement exists—i.e., whether the parties actually entered into a valid contract agreeing to arbitrate certain disputes—and whether it is enforceable.

(*Pinnacle Museum Tower Ass’n v. Pinnacle Market Develop. (US), LLC* (2012) 55 Cal.4th 223, 236.) The moving party has the initial burden to prove the existence of an agreement to arbitrate by either reciting verbatim or providing a copy of the agreement. (CRC 3.1330; *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 219.)

If the moving party meets its initial burden and the opposing party disputes the existence of an agreement, then “the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) The opposing party may do this by declaring under penalty of perjury that it never saw or does not remember seeing the agreement, or that it never signed or does not remember signing the agreement. (*Ibid.*; see also, *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 546; *Espejo v. Southern California Permanente Med. Grp.* (2016) 246 Cal.App.4th 1047, 1054.) If the opposing party meets its burden, then the burden shifts back to the moving party to establish with admissible evidence the existence of a valid arbitration agreement. “The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Here, the Court finds that Defendant has failed to meet its initial burden.

Defendant provides the declaration of Christina Reynoso, Defendant’s Business Manager. (ROA 24, Decl. of Christina Reynoso (“Reynoso Decl.”).) Reynoso attests that Plaintiff was a former employee of Defendant’s, and as part of his employment with Defendant, Plaintiff “voluntarily executed an arbitration agreement” wherein he agreed to arbitrate any and all employment-related claims against Defendant. Reynoso further attests that this arbitration agreement was provided to Plaintiff in Spanish, his native language. (Reynoso Decl., ¶ 2.) Reynoso then claims that a “true and correct copy of this arbitration agreement, in Spanish,” is attached to her declaration as Exhibit A, and that the exhibit also includes the English translated version. (*Ibid.*) In addition, Reynoso attests that the English translation was completed by a professional translator, and a certification of the translated text is attached to Reynoso’s declaration as Exhibit B. (*Ibid.*)

However, as a preliminary matter, Exhibit A to Reynoso’s declaration only contains the English versions of documents entitled “Employment Agreement” and “Addendum ‘A’ – Employee Acknowledgement and Agreement.” (See, Reynoso

Decl., Exh. A.) No Spanish version is attached to Reynoso's declaration. Both of the English-language documents contain Plaintiff's name in the signature blocks with the date of "20-JUN-2023". (*Ibid.*) Nevertheless, since Reynoso has declared that Plaintiff was provided with a Spanish-language version of an arbitration agreement, then neither of the documents attached to her declaration can serve to prove the existence of a valid arbitration agreement.

Defendant also proffers the declaration of counsel. (See, ROA 25, Decl. of Carmine J. Pearl ("Counsel Decl.")). Counsel attests that "[f]or purposes of the Court's assessment of the [instant] Motion," his firm had the arbitration agreement translated from Spanish to English. Counsel then attests that a certification of the translated text by Ms. Zamora is attached to his declaration as Exhibit B. (*Ibid.*) In addition, counsel provides copies of emails that were exchanged with Plaintiff's counsel in an effort to obtain the agreement of Plaintiff's counsel to stipulate to the arbitration process in this matter. (Counsel Decl., ¶ 3, Exh. C.) Counsel attests that he also emailed a copy of the arbitration agreement to Plaintiff's counsel—a copy that is included as part of Exhibit C. (*Ibid.*)

Exhibit C to counsel's declaration contains documents that appear to be Spanish-language versions of the Employment Agreement and Addendum 'A' – Employee Acknowledgement and Agreement that are provided with Reynoso's declaration. Both documents also contain what appears to be an electronic version of Plaintiff's name or signature. (See, Counsel Decl., Exh. C.) However, to the extent these documents are admissible, they also cannot be used to prove the existence of a valid arbitration agreement between Plaintiff and Defendant since counsel does not attest as to the authenticity of the documents or any apparent electronic signature contained therein.

Therefore, since neither of the declarations proffered by Defendant are sufficient in proving the existence of a valid arbitration agreement, then it is found that Defendant has not met its initial burden.

Even to the extent the Court decides that Defendant has met its initial burden, the Motion still fails. In opposition, Plaintiff contends he did not electronically sign an arbitration agreement. In his declaration, Plaintiff attests that on his first day of employment with Defendant, his manager had him sit beside him at a computer. (ROA 55, Decl. of Andres Alvarez ("Plaintiff Decl."), ¶ 3.) Plaintiff attests that the manager then quickly clicked through a series of documents and told him he

needed to sign off on the documents if he wanted to work for Defendant. (*Ibid.*) Plaintiff attests this onboarding process was rushed, and he was not permitted to review the documents, nor did he feel that he was allowed to ask questions about the documents. (*Id.*, ¶¶ 3-7.) Notably, Plaintiff attests that he “never click-signed any document personally,” but rather, his “manager remained in front of the computer the entire time and clicked each document.” (*Id.*, ¶ 8.) Plaintiff attests that he did not have any meaningful choice as to whether his manager click-signed the documents for him, including any arbitration agreement, and he did not feel he could prevent his manager from hurriedly “clicking through and signing off on the documents.” (*Id.*, ¶ 11.)

In reply, Defendant proffers the supplemental declaration of Reynoso. (ROA 63, Supp. Decl. of Christina Reynoso (“Reynoso Supp. Decl.”).) Reynoso attests that in June 2023, Plaintiff became an employee of Defendant, and as a result, Plaintiff “was required to complete [Defendant’s] pre-application and onboarding process.” (Reynoso Supp. Decl., ¶ 2.)

According to Reynoso, Defendant had the following custom and practice with respect to hiring and onboarding employees: (a) the employee received a pre-application wherein the employee provided basic information, including their email; (b) the pre-application would be provided to Reynoso at the corporate office, where it would be reviewed to confirm information and perform the necessary background check on the employee; (c) the corporate office would then cause its payroll company, Paycom, to email with the full application and onboarding paperwork to the employee using the email address provided by the employee on the pre-application; and (d) the employee would then login through their email, set up their own unique password, and fill out their onboarding paperwork. (Reynoso Supp. Decl., ¶ 3.)

Reynoso attests employees had access to the onboarding paperwork at any time, whether they were at work or not, and they were given as much time as they needed to review the paperwork through the Paycom link. (Reynoso Supp. Decl., ¶ 3.) Reynoso then attests in conclusory fashion, “This process was followed with respect to Plaintiff.” (*Ibid.*) Reynoso goes on to attest that the full application and onboarding paperwork was sent to Plaintiff’s email on June 19, 2023, and at 1:18 p.m. on June 20, 2023, Plaintiff “completed his onboarding paperwork.” (*Id.*, ¶ 4.) Reynoso then notes that at the time Plaintiff filled out his onboarding paperwork, Defendant had not yet set up any computers at the dealership where Plaintiff

was working. (*Id.*, ¶ 5.) Reynoso's attestations are insufficient.

Generally, Defendant is "not required to authenticate [Plaintiff's] signature on [the] arbitration agreement as a preliminary matter in moving for arbitration," and has no obligation to do so unless "the authenticity of the signature" is actually challenged. (*Ruiz v. Moss Bros. Auto Grp., Inc.* (2014) 232 Cal.App.4th 836, 846.)

Here, taking into account Reynoso's supplemental declaration, the parties' dispute over whether Defendant has established the existence of a valid arbitration agreement rests almost exclusively on whether Reynoso's declaration sufficiently authenticates Plaintiff's signature on the arbitration agreement.

Civil Code section 1633.9 addresses how an electronic signature can be authenticated, and provides in relevant part: "An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." (Civ. Code, § 1633.9, subd. (a).) Courts have held that the "[t]he burden of authenticating an electronic signature is not great." (*Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1067, quoting *Ruiz, supra*, 232 Cal.App.4th at p. 844.) "The party seeking authentication may carry its burden 'in any manner,' including by presenting evidence of the contents of the contract in question and the circumstances surrounding the contract's execution." (*Fabian, supra*, 42 Cal.App.5th at p. 1068.)

Here, in the instant litigation, Defendant has not met its burden of establishing the authenticity of Plaintiff's electronic signature on the arbitration agreement. Indeed, Defendant's evidence is not "of such a character and weight as to leave no room for a judicial determination" that Defendant failed to establish that Plaintiff electronically signed the arbitration agreement. (See, *Fabian, supra*, 42 Cal.App.5th at p. 1068.)

As noted above, Defendant seeks to authenticate Plaintiff's signature by outlining its purported "custom and practice" in onboarding employees. However, Reynoso's declaration falls short. In Reynoso's reply declaration, she fails to explain how, or on what basis, she inferred that the electronic signature was "the act of" Plaintiff. Not only does Reynoso fail to even provide a copy of the document purportedly signed by

		Plaintiff, but she fails to explain how the electronic signature could only have been placed on the document by Plaintiff. Moreover, Reynoso does not attest as to the process, if any, used to verify an employee's electronic signature through the Paycom link. She also fails to explain who receives the signed onboarding documents, and how an employee's identification is verified as the person who actually signed the documents. Indeed, Reynoso only summarily asserts that the onboarding process "was followed with respect to Plaintiff." (Reynoso Supp. Decl., ¶ 3.) This leaves a critical gap in the evidence in support of the Motion. (See, <i>Fabian, supra</i>, 42 Cal.App.5th at pp. 1069-1070.) Since Defendant has failed to meet its burden of establishing the existence of a valid agreement with Plaintiff, the Motion is denied. The Court need not address issues of enforceability or unconscionability. Defendant is ordered to give notice of this ruling.
105	Garcia vs. Compassionate Heart Senior Care, Inc. 2022-01294409	Motion for Final Approval Plaintiff Monica Garcia's Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On November 30, 2022, Plaintiff Monica Garcia, individually and on behalf of all others similarly situated ("Plaintiff"), filed a Class Action Complaint against Defendant Compassionate Heart Senior Care, Inc. dba Home Instead Senior Care ("Defendant"). The Complaint asserts eight causes of action for various wage-and-hour violations of the Labor Code and a violation of the Unfair Competition Law. On September 15, 2023, Plaintiff filed a PAGA-only action against Defendant, as Case No. 2023-01349739. On April 5, 2024, the Court took notice that the two cases are related. On May 20, 2024, Plaintiff filed the Motion for Preliminary Approval of Class Action Settlement. The settlement included Plaintiff's PAGA claims. On October 18, 2024, at the second hearing on the matter, the Court granted the Motion, and the Order Granting Preliminary Approval was entered on October 24, 2024. On February 26, 2025, Plaintiff filed the current Motion for Final Approval of Class Action and PAGA Settlement. The Motion seeks final approval of the Amended Joint Stipulation of Class and PAGA Settlement for the non-reversionary Gross Settlement Amount of \$185,000.00. The putative Settlement Class consists of 298 Class Members comprised of: "All